

under this provision must be made within 90 days of the date of acceptance of the declaration.

In a situation where the customs declaration concerns the importation of goods, purchased by a private individual and all or some of the goods have been returned, a repayment of duty and/or VAT may be made subject to the officers being satisfied that:

- The goods have been exported with a view to their return to the original supplier's address or to another address indicated by that supplier,
- The declaration amendment or invalidation must be carried out within 90 days of the date of acceptance of the declaration (Article 148(3) UCC DA).

Where the declaration contains multiple items and not all of the items are being returned i.e. a partial return, an amendment of the import declaration is required which removes those items that were exported. Where all the items on the declaration are being returned i.e. a full return, then an invalidation of the import declaration is required.

If the amendment or invalidation results in a refund of customs duty or VAT, the amount of duty overpaid will be refunded to the account from where the original debt was paid. The declarant who submitted the original declaration would then refund the monies to the importer.

As per Article 142(b) UCC DA an electronic export declaration must be submitted for goods which have been returned where the original importation of goods was liable to Customs Duty, regardless of the value of the goods being exported. Where the requirement for the submission of an electronic export declaration is not applicable, Revenue may ask for further evidence from the operators proving that the goods have left the customs territory of the EU. Revenue will take a decision on the invalidation or amendment of the customs declaration on the basis of the information provided.

Where the importation of goods was carried out under the Import One Stop Shop (IOSS), then there is no requirement to amend or invalidate the customs declaration when goods are returned. In these instances, the private individual importer will receive a refund of the VAT they paid directly from the vendor who is registered for IOSS. The vendor will make a corresponding correction in the IOSS return of the same or subsequent month in order for them to reclaim the VAT.

10.2.3 Defective goods or goods not complying with the terms of the contract.

The legal basis for granting repayment because of defective goods or goods not complying with the terms of the contract' is provided for in Article 118 UCC.

Defective goods include goods damaged in transit before arrival at the examination station or other approved place, or while deposited there awaiting clearance. Officers processing such repayment/remission claims should be satisfied that: